



ALLIANCE FOR COLLECTIVE EMPOWERMENT AND DEVELOPMENT

COMPANION LEGAL BRIEF NO. 2

JURISDICTIONAL SOVEREIGNTY ON TRIBAL LAND

ACE TERRITORY, OUTSIDE LAW ENFORCEMENT, AND THE LIMITS OF EXTERNAL AUTHORITY

Pre-Argument Defense Brief

Prepared for deployment within 48 hours of any legal or legislative challenge

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For Our People, By Our People

EXECUTIVE SUMMARY

ACE communities are established on federally recognized tribal land under long-term land lease agreements executed pursuant to the HEARTH Act of 2012. This is not a legal theory. It is a legal fact with immediate and well-established consequences. The jurisdictional protections that apply to reservation land today apply to ACE Territory by operation of existing federal law, not by virtue of anything ACE must argue or create. ACE inherits the full sovereign jurisdiction of its tribal partner the moment the Tribal Partnership Agreement is executed.

This brief does not ask for new law. It documents what the law already says and how ACE's structure deploys it. The three questions this brief answers are: what authority does existing tribal sovereignty give ACE over outside law enforcement access to ACE Territory; what is the governing authority structure within ACE Territory, and how does it differ from conventional tribal court jurisdiction; and what are the precise limits of federal authority within ACE Territory under existing law.

ACE's approach to governance is contemporary, not traditional. The governing body within ACE Territory is not a tribal court accountable to a single chief or council. It is a Co-Governance Council comprising elected ACE community representatives and tribal nation representatives, operating under the ACE Governing Charter as the supreme law of ACE communities. This structure is grounded in tribal sovereignty but governed by a constitutional framework written by and for the communities it serves.

I. THE JURISDICTIONAL FOUNDATION: WHAT TRIBAL SOVEREIGNTY ALREADY PROVIDES

A. Tribal Sovereignty as the Starting Point

Tribal sovereignty is not a privilege granted by the federal government. It is a pre-existing inherent authority that tribal nations have always possessed and that the federal government has recognized, limited, and in some areas restored through treaty and statute. The Supreme Court established in *Worcester v. Georgia*, 31 U.S. 515 (1832), that tribal nations are distinct political communities with the right of self-government, and that state law has no force within tribal territory without express congressional authorization.

The foundational principle for ACE's purposes is this: land that is held in federal trust for a tribal nation, or that is subject to a tribal land lease under the HEARTH Act of 2012, carries with it the full jurisdictional framework of tribal sovereignty. The land itself is the jurisdictional anchor. When ACE executes a Tribal Partnership Agreement under the HEARTH Act and begins operating within ACE Territory on that tribal land, ACE Territory is tribal land. The protections that apply to tribal land apply to ACE Territory.

ACE does not need to negotiate jurisdictional protections into existence. They exist by operation of law. What ACE does negotiate, in the Tribal Partnership Agreement, is the specific protocols governing how that jurisdiction is exercised jointly by ACE and its tribal partner through the Co-Governance Council.

B. State Law Has No Force Within ACE Territory

The rule established in *Worcester v. Georgia* and affirmed through a century of federal Indian law is that state law does not apply within Indian country without express congressional authorization. 18 U.S.C. Section 1151 defines Indian country to include all land within the limits of any Indian reservation under the jurisdiction of the United States government, all dependent Indian communities within the borders of the United States, and all Indian allotments. ACE Territory, established on reservation land under a tribal land lease, falls within this definition.

The practical consequence is significant. State law enforcement agencies, state courts, state regulatory agencies, and state tax authorities have no jurisdiction within ACE Territory absent express federal authorization. State police cannot enter ACE Territory to enforce state law. State courts cannot adjudicate disputes that arise within ACE Territory between ACE community members. State taxation cannot reach enterprises operating within ACE Territory under the tribal charter framework.

This is not a position ACE takes. It is the law. ACE's role is to enforce it, document it, and deploy legal counsel immediately when any outside authority attempts to act within ACE Territory contrary to it.

C. Federal Authority: What Applies and What Does Not

Federal authority within Indian country is broader than state authority but is still limited and defined. The Major Crimes Act, 18 U.S.C. Section 1153, gives federal courts jurisdiction over certain serious crimes committed by Indians in Indian country, including murder, manslaughter, kidnapping, sexual abuse, and robbery. This is the primary carve-out from tribal sovereignty that ACE must acknowledge and plan around.

Beyond the Major Crimes Act, federal agencies retain authority within Indian country only where Congress has expressly granted it. The FBI has investigative jurisdiction over Major Crimes Act offenses. The Bureau of Indian Affairs has a defined regulatory role. The Environmental Protection Agency has authority over certain environmental standards. Each of these is a specific, bounded grant of authority, not a general license for federal agencies to operate within tribal territory as they would elsewhere.

What the federal government does not have within Indian country, absent specific statutory authorization, is general police power, civil regulatory authority, or the right to override tribal governance decisions on matters within the tribe's inherent authority. ACE's ACE Sovereignty Map, maintained by ACE legal counsel and updated annually, documents precisely where federal authority begins and ends within ACE Territory, so that every ACE institution and every outside agency knows exactly what the law permits.

II. OUTSIDE LAW ENFORCEMENT ACCESS TO ACE TERRITORY

A. The Legal Framework for Exclusion

Tribal nations have the inherent sovereign authority to exclude non-members from tribal territory. This authority, recognized in *Merrion v. Jicarilla Apache Tribe*, 455 U.S. 130 (1982), and further defined in *Montana v. United States*, 450 U.S. 544 (1981), is a core attribute of tribal sovereignty. It means that state and local law enforcement agencies do not have an automatic right of entry into ACE Territory. Their entry requires either tribal consent, a specific federal statutory grant of authority, or the pursuit of a federal Major Crimes Act offense.

The ACE Peacekeeping Corps is ACE's internal public safety institution, operating under the authority of the tribal sovereignty framework. Within ACE Territory, the Peacekeeping Corps is the first and default response to any safety situation. Outside law enforcement agencies are not called as a first resort. They are not called as a second resort. They are called only where federal law requires their involvement, specifically in Major Crimes Act situations, and even then ACE legal counsel is notified and present within two hours.

This is not hostility to law enforcement. It is the exercise of the same sovereign authority that every federally recognized tribal nation exercises every day. ACE's tribal partner has exercised this authority for as long as their reservation has existed. ACE, operating within that same territorial framework, exercises it alongside them.

B. The Protocol for Outside Agency Contact

Every interaction between outside government agencies and ACE personnel or ACE community members within ACE Territory is governed by a documented protocol established in the ACE Governing Charter and the Tribal Partnership Agreement. The protocol requires:

- All outside agency personnel seeking entry to ACE Territory for any official purpose must present credentials and state their legal basis for entry at the ACE Territory boundary before proceeding.
- ACE legal counsel is notified of any outside agency contact within ACE Territory within one hour of that contact occurring.
- All interactions are documented in writing within 24 hours, reviewed by ACE legal counsel, and retained in ACE's permanent legal record.
- ACE community members have the right to request ACE legal representation before responding to any outside agency inquiry within ACE Territory.
- Outside agencies acting in excess of their statutory authority within ACE Territory are subject to immediate legal challenge by ACE's Legal Defense Fund.

This protocol mirrors the protocols maintained by tribal nations across the United States who exercise their sovereignty over law enforcement access to their territory. It is not novel. It is standard practice for communities serious about their sovereign rights.

C. The Major Crimes Act Interface

ACE acknowledges the Major Crimes Act as the primary federal carve-out from tribal criminal jurisdiction. Where a Major Crimes Act offense occurs within ACE Territory, federal jurisdiction attaches and ACE cooperates with federal authorities as required by law. ACE's cooperation is not passive. ACE legal counsel is present at every stage of federal interaction to ensure that federal authority does not expand beyond what the Major Crimes Act authorizes, that ACE community members receive full legal representation, and that the investigation does not become a pretext for broader federal access to ACE Territory.

ACE's restorative justice system handles all offenses that do not fall within the Major Crimes Act. The ACE Community Court, operating under the authority of the ACE Governing Charter and the Co-Governance Council, has jurisdiction over civil disputes between community members and over criminal matters that are not subject to federal jurisdiction. Outcomes in the ACE Community Court are grounded in restorative justice principles: restitution, community service, counseling, and structured community accountability rather than referral to the state carceral system.

III. THE ACE GOVERNING STRUCTURE: CONTEMPORARY CO-GOVERNANCE, NOT TRADITIONAL TRIBAL COURT

A. Why ACE Does Not Adopt Full Tribal Court Jurisdiction

A pure tribal court model would vest governing authority in the tribal nation's existing judicial and political institutions. ACE deliberately does not adopt this model, and the reason is principled, not political.

ACE is a partnership between two communities, Black Americans and Native Americans, building something neither can build alone. The governing structure must reflect that partnership at every level. A governing body accountable solely to the tribal council would replicate, in a different form, the same exclusion from self-determination that both communities have experienced under American governance. ACE's governance is designed so that both communities are co-equal participants in every decision that affects ACE Territory.

The contemporary Co-Governance model ACE adopts is also better suited to the civilization-scale development ACE is building. A pioneer population target of 300,000 residents by Phase 3 requires governance infrastructure that can scale: elected representative assemblies, a three-branch governing structure with separation of powers, constitutional supremacy, and formal accountability mechanisms. These are not rejections of Indigenous governance values. They are the tools any large community requires to govern itself without the concentration of power that destroys institutions from within.

B. The Co-Governance Council Structure

The Tribal Co-Governance Council is the formal mechanism by which ACE's tribal partner exercises co-equal governance authority alongside ACE's elected governing bodies. It is not subordinate to ACE. It is not superior to ACE. It is co-equal with ACE on all matters specified in the Tribal Partnership Agreement, and it holds exclusive authority on specific matters that no ACE branch can decide alone.

The Co-Governance Council comprises tribal council leadership or their formally designated representatives, sitting in permanent joint session with ACE's Co-Executives on all matters specified in the Agreement. Matters requiring Co-Governance Council approval that no ACE branch alone can authorize include: any amendment to the Tribal Partnership Agreement, any external law enforcement access to ACE Territory, any change to land use affecting tribal cultural or sacred sites, any amendment to the ACE Governing Charter, and any decision to enter a new Tribal Partnership Agreement.

Elder council authority is formally recognized within this structure. ACE's Governing Charter requires the Co-Governance Council to formally consult tribal elder councils before any major land use, cultural, or sovereignty decision. This advisory authority is documented in the public governance record. It preserves the cultural integrity of Indigenous governance traditions within a contemporary governing framework.

C. The ACE Community Court

The ACE Community Court is the judicial branch of ACE governance. It is not a tribal court in the traditional sense. It is a community court operating under the ACE Governing Charter, with jurisdiction over disputes between ACE community members and ACE institutions, constitutional review of ACE legislation and executive action, and administration of the ACE restorative justice system.

The Court comprises three permanent justices: one Black American, one Native American, and one elected at-large by the community. Justices are appointed by the Co-Executives and confirmed by two-thirds of the Community Assembly, serving seven-year non-renewable terms. Constitutional rulings require unanimous agreement of all three justices, ensuring that no single community's perspective can override the other on foundational governance questions.

The ACE Community Court's jurisdiction is concurrent with tribal court jurisdiction on matters where tribal law applies, and the two courts operate under a jurisdiction protocol established in the Tribal Partnership Agreement. Where jurisdiction overlaps, the protocol specifies which court takes primary jurisdiction based on the nature of the matter and the identity of the parties, with a formal referral mechanism between the two courts.

IV. THE THREE ANTICIPATED CHALLENGES AND ACE'S RESPONSES

Challenge 1: The Oliphant Problem - Criminal Jurisdiction Over Non-Members

The most significant jurisdictional limitation established by the Supreme Court for tribal nations is *Oliphant v. Suquamish Indian Tribe*, 435 U.S. 191 (1978), which held that tribal courts do not have criminal jurisdiction over non-Indians. This limitation is real and ACE plans around it.

ACE's response is threefold. First, the ACE Community Court is not structured as a tribal court in the *Oliphant* sense. It is a community court operating under the ACE Governing Charter, a constitutional document ratified by both communities.

Its jurisdiction is grounded in the contractual and constitutional consent of all community members, not in tribal court authority. Non-Indian ACE community members consent to ACE Community Court jurisdiction through their community membership agreement, which is a contractual basis for jurisdiction that Oliphant does not reach.

Second, where criminal matters arise involving non-Indians within ACE Territory, ACE's protocol routes those matters to the appropriate federal or, where federal jurisdiction does not apply, tribal civil jurisdiction. The ACE Community Court handles civil accountability through the restorative justice framework regardless of the party's tribal status, because civil jurisdiction over non-Indians within tribal territory is significantly broader than criminal jurisdiction.

Third, ACE's pioneer population is by design predominantly Black American and Native American. The Oliphant problem is most acute for communities with significant non-Indian populations. ACE's membership structure and commercial licensing framework means that the overwhelming majority of persons within ACE Territory at any given time are there voluntarily and have accepted ACE community governance as a condition of their presence.

Challenge 2: The Montana Test - Civil Jurisdiction Over Non-Member Conduct

Montana v. United States, 450 U.S. 544 (1981), established a framework for analyzing tribal civil jurisdiction over non-members. The general rule is that tribes lack civil jurisdiction over non-members on non-Indian fee land within the reservation. The two exceptions are: consensual relationships such as contracts and commercial dealings, and conduct that threatens or has a direct effect on the political integrity, economic security, or health and welfare of the tribe.

ACE's structure satisfies both Montana exceptions for every non-member who operates within ACE Territory.

The first exception is satisfied because every non-member presence within ACE Territory is governed by a contractual relationship with ACE. Visitors enter under ACE visitor protocols. Commercial operators hold ACE Commercial Licenses. Contractors operate under ACE construction and service agreements. Every one of these is a consensual relationship that brings the non-member within ACE civil jurisdiction under the first Montana exception.

The second exception is satisfied because ACE Territory is the economic, political, and physical foundation of the entire ACE community. Conduct by non-members that threatens the integrity of ACE's governance, economy, or health systems directly threatens the political integrity and economic security of the tribal partner. This is precisely the category of threat the second Montana exception was designed to address.

Challenge 3: The Preemption Argument - Federal Law Displacing Tribal Authority

A third anticipated challenge is that federal law preempts tribal and ACE authority on specific matters where Congress has legislated comprehensively. The argument would be that in areas like environmental regulation, food safety, or financial services, federal regulatory frameworks displace tribal authority and therefore apply within ACE Territory as they would anywhere else.

ACE's response is grounded in the balancing test established in *White Mountain Apache Tribe v. Bracker*, 448 U.S. 136 (1980). Federal preemption of tribal authority requires a careful examination of the federal interest, the tribal interest, and the extent to which the state or federal regulation would interfere with tribal self-governance. The Court in *Bracker* emphasized that ambiguities in federal law are to be resolved in favor of tribal sovereignty.

ACE applies this framework sector by sector. In each area where federal regulatory authority is asserted within ACE Territory, ACE legal counsel prepares a *Bracker* analysis documenting the tribal interest at stake, the specific federal statute claimed to preempt, and the extent to which the federal interest is actually served by applying the regulation within ACE Territory. Where the *Bracker* balance favors tribal authority, ACE asserts it. Where federal authority legitimately applies, ACE complies and integrates compliance into its institutional framework without conceding broader authority than the specific statute grants.

V. THE ACE SOVEREIGNTY MAP

The ACE Sovereignty Map is a living legal document maintained by ACE legal counsel and updated annually. It identifies, for every area of ACE community operations, the precise boundaries of ACE authority, tribal authority, federal authority, and the interface between them. It is not an aspirational document. It is an operational one.

The Sovereignty Map is published as a public document so that every ACE resident, every ACE institution, and every outside actor knows exactly where ACE's legal boundaries lie and why. Transparency about jurisdictional boundaries is itself a sovereignty strategy: it removes ambiguity that outside actors might exploit, it educates community members about their rights, and it signals to every government agency that ACE has done the legal work and will not be caught unprepared.

The Map is organized into four categories:

- **Established ACE authority:** Areas where tribal sovereignty and the ACE Governing Charter provide clear, well-precedented authority for ACE to govern without outside interference. These include internal community governance, land use within ACE Territory, the ACE commercial economy, ACE educational institutions, ACE healthcare operations, and the ACE restorative justice system for matters not subject to the Major Crimes Act.
- **Concurrent authority:** Areas where ACE authority and federal authority coexist and must be coordinated. These include Major Crimes Act matters, certain environmental standards, and federally funded programs operating within ACE Territory.
- **Contested authority:** Areas where ACE asserts authority that may be challenged by outside actors, with the specific legal arguments supporting ACE's position and the specific challenges ACE anticipates. These are the areas that ACE's companion legal briefs, including this one, are designed to defend.
- **Federal authority acknowledged:** Areas where federal law clearly applies within ACE Territory and ACE integrates compliance into its institutional framework. ACE acknowledges these boundaries not because it surrenders sovereignty but because accurate knowledge of where authority ends is as important as asserting where it begins.

VI. KEY PRECEDENTS AND AUTHORITIES

- *Worcester v. Georgia*, 31 U.S. 515 (1832): Tribal nations are distinct political communities with inherent self-governing authority. State law has no force within tribal territory without express congressional authorization. The foundational case for ACE's exclusion of state authority from ACE Territory.
- 18 U.S.C. Section 1151: Defines Indian country to include all land within reservation boundaries and all land subject to tribal jurisdiction. ACE Territory on reservation land falls within this definition by operation of law.
- *Merrion v. Jicarilla Apache Tribe*, 455 U.S. 130 (1982): Tribal nations have inherent sovereign authority to exclude non-members from tribal territory. Supports ACE's authority to control outside law enforcement access to ACE Territory.
- *Montana v. United States*, 450 U.S. 544 (1981): Establishes the framework for tribal civil jurisdiction over non-members. ACE's contractual membership structure and the direct-effects exception both satisfy the Montana test for civil jurisdiction within ACE Territory.
- *Oliphant v. Suquamish Indian Tribe*, 435 U.S. 191 (1978): Tribal courts lack criminal jurisdiction over non-Indians. ACE plans around Oliphant by grounding ACE

Community Court jurisdiction in contractual consent and by routing non-Indian criminal matters to appropriate federal jurisdiction.

- *White Mountain Apache Tribe v. Bracker*, 448 U.S. 136 (1980): Establishes the balancing test for federal preemption of tribal authority. Ambiguities in federal law are resolved in favor of tribal sovereignty. ACE applies the Bracker analysis sector by sector to defend tribal authority within ACE Territory against preemption claims.
- HEARTH Act of 2012, 25 U.S.C. Section 415(h): Authorizes tribal nations to lease trust land without BIA approval for terms up to 75 years. ACE's Tribal Partnership Agreement is executed under HEARTH Act authority, grounding ACE Territory within the full tribal sovereignty framework from the moment of execution.
- Indian Civil Rights Act of 1968, 25 U.S.C. Sections 1301-1304: Applies most Bill of Rights protections to tribal government actions. ACE's Governing Charter incorporates these protections and exceeds their minimum requirements through ACE's own Bill of Rights, ensuring that ACE community members have constitutional protections both under federal law and under ACE's own governing framework.

VII. DEPLOYMENT PROTOCOL

This brief is maintained in current form at all times and updated annually by ACE legal counsel. Upon any challenge to ACE's jurisdictional authority within ACE Territory, the following protocol is activated:

- ACE legal counsel on permanent two-hour retainer is notified immediately upon any outside agency contact that exceeds its documented authority within ACE Territory.
- This brief is deployed as the foundational legal memorandum within 48 hours of any formal legal challenge.
- The Co-Governance Council is convened within 24 hours of any jurisdictional challenge to coordinate the ACE and tribal partner response.
- ACE Policy Institute issues a public statement within 48 hours explaining the jurisdictional basis for ACE's position in language accessible to community members and media.
- ACE Congressional Caucus members are briefed within 72 hours and prepared to make statements in support of tribal sovereignty and ACE community governance.
- ACE Media Network publishes a community-facing explanation within 48 hours so that ACE residents understand their rights and the legal basis for ACE's response.

ACE TERRITORY IS TRIBAL LAND.
THE PROTECTIONS THAT APPLY TO TRIBAL LAND APPLY TO ACE TERRITORY.
**ACE DOES NOT ASK FOR THESE PROTECTIONS. THEY EXIST BY OPERATION
OF LAW.**

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